

		reducing the number of issues or eliminating the need for a demurrer, and to continue the hearing date to facilitate that effort.” (<i>Dumas v. Los Angeles County Bd. of Supervisors</i> (2020) 45 Cal.App.5th 348, 356.) Here, the declaration of Attorney Ross A. Spector, indicates that on October 21, 2025, he sent an email to Plaintiff’s attorney fully explaining the grounds for his clients’ position. (Decl. of Spector¶2.) Plaintiff’s counsel never responded to the email. (Id.¶3.) The above establishes no meet and confer as required by Code of Civil Procedure sections 430.41 or 435.5 effectively took place. Based on the foregoing, the Court CONTINUES the hearing on the demurrer and motion to strike to June 25, 2026 at 1:30 p.m. in Department W15. The Court ORDERS the parties to meet and confer in person, by zoom or video remote technology, concerning the issues raised in the demurrer and motion to strike. Defendant to file and serve a supplemental declaration setting forth the meet and confer efforts by counsel for the parties as to the issues raised by the demurrer and motion to strike, the outcome of the meet and confer, and what issues, if any, remain for the Court. The supplemental declaration to be filed no later than nine (9) court days before the new hearing date. The Case Management Conference is continued to June 25, 2026 at 1:30 p.m. <i>Defendant to give notice.</i>
110	Lee vs. Kingsbury, 25-01472404	<u>Demurrer</u> Defendant, Michael Kingsbury (“Kingsbury”), demurs to all seven causes of action asserted in the First Amended Complaint (“FAC”) of Plaintiff, Jessica V. Lee (“Plaintiff”). <i>Uncertainty</i> Kingsbury contends that the FAC contains multiple factual contradictions which render the pleading uncertain under Code of Civil Procedure §430.10(f) because Defendant

		cannot reasonably ascertain what factual theory is being asserted. Code of Civil Procedure section 430.10(f) provides that a defendant may demur on the ground that the pleading is uncertain. "As used in this subdivision, 'uncertain' includes ambiguous and unintelligible." "A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures." (<i>Khoury v. Maly's of California, Inc.</i> (1993) 14 Cal App.4th 612, 616.) Demurrers for uncertainty "are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond." (<i>Lickiss v. Fin. Indus. Regulatory Auth.</i> (2012) 208 Cal.App.4th 1125, 1135.) The allegations that services were not provided but a certificate was issued, and that a refund was refused and then a refund was completed are not contradictory. In particular, the FAC alleges that on Kingsbury refused to refund the money, i.e., \$17,000, and that the \$17,000 "was eventually repaid on May 1 after suit was filed" (Complaint, Summary of Facts.) Lastly, it is alleged that Kingsbury stated in court that he was not the owner and that Plaintiff alleges that "Kevin Young is the owner and principal responsible for the misconduct." (Complaint, Summary of Facts.) To the extent that this allegation is uncertain, it may be clarified in discovery. <i>Failure to State Facts Sufficient to Constitute a Cause of Action</i> <i>First and Second Causes of Action for Fraud and Negligent Misrepresentation</i> Kingsbury contends that Plaintiff affirmatively alleges in her own FAC that the entirety of the disputed \$17,000 was refunded to her on May 1, 2025, and that this fact is fatal to her claims for fraud, and negligent misrepresentation. Kingsbury also contends that the first cause of action for fraud fails to state facts sufficient to constitute a cause of action and is uncertain because the FAC contains only
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		vague allegations of "false representations" without identifying the precise statements made, who made them, when they were made, or in what context; that the FAC does not allege facts demonstrating that any Defendant knew the alleged representations were false at the time they were made; that conclusory allegations that Defendants "knowingly" made misrepresentations are insufficient; and that Plaintiff does not explain why her reliance was justifiable. As to the second cause of action for negligent misrepresentation, Kingsbury additionally contends that it fails to state facts sufficient to constitute a cause of action because the FAC does not allege facts demonstrating Defendants lacked reasonable grounds for any alleged representation; the second cause of action is duplicative of the first cause of action as it relies on the identical factual allegations and should be dismissed, and that any alleged sales pitches about trading success, quality of program, or future results constitute non-actionable opinions and sales puffery, not actionable misrepresentations. Plaintiff contends that the FAC sufficiently alleges fraud. " 'The elements of fraud that will give rise to a tort action for deceit are: '(a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or 'scienter'); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage.' " (<i>Engalla v. Permanente Medical Group, Inc.</i> (1997) 15 Cal.4th 951, 974.) "The essential elements of a count for negligent misrepresentation are the same [as intentional misrepresentation] except that it does not require knowledge of falsity, but instead requires a misrepresentation of fact by a person who has no reasonable grounds for believing it to be true." (<i>Chapman v. Skype Inc.</i> (2013) 220 Cal.App.4th 217, 231.) "Fraud must be pleaded with particularity. General and conclusory allegations are inadequate. [Citation.]" (<i>Laukhart v. El</i>
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		<i>Macero Homeowners Assn.</i> (2023) 92 Cal. App. 5th 889, 903.) To survive demurrer, plaintiff must plead facts that “show how, when, where, to whom, and by what means the representations were tendered.” (<i>Hamilton v. Greenwich Investors XXVI, LLC</i> (2011) 195 Cal.App.4th 1602, 1614.) “Fraud must be specifically pleaded; a general pleading of the legal conclusion of fraud is insufficient. Every element of the cause of action must be alleged in full, factually and specifically. [Citation.]” (<i>Tindell v. Murphy</i> (2018) 22 Cal.App.5th 1239, 1249.) “This pleading requirement of specificity [for a fraud cause of action] applies not only to the alleged misrepresentation, but also to the elements of causation and damage.” (<i>Moncada v. West Coast Quartz Corp.</i> (2013) 221 Cal.App.4th 768, 776.) “[W]hen a complaint contains allegations that are fatal to a cause of action, a plaintiff cannot avoid these defects simply by filing an amended complaint that omits the problematic facts or pleads facts inconsistent with those alleged earlier. [Citations.]” (<i>Banis Restaurant Design, Inc. v. Serrano</i> (2005) 134 Cal.App.4th 1035, 1044.) Unless a plaintiff merely seeks to rescind a contract, a plaintiff must suffer actual monetary loss to recover on a fraud claim. (<i>Alliance Mortgage Co. v. Rothwell</i> (1995) 10 Cal.4th 1226, 1240.) “There are two measures of damages for fraud: out-of-pocket and benefit of the bargain. [Citation.] The ‘out-of-pocket’ measure of damages ‘is directed to restoring the plaintiff to the financial position enjoyed by him prior to the fraudulent transaction, and thus awards the difference in actual value at the time of the transaction between what the plaintiff gave and what he received. The “benefit-of-the-bargain” measure, on the other hand, is concerned with satisfying the expectancy interest of the defrauded plaintiff by putting him in the position he would have enjoyed if the false representation relied upon had been true; it awards the difference in value between what the plaintiff actually received and what he was fraudulently led to believe he would receive.’ [Citations.]” (<i>Ibid.</i>) ‘In
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		California, a defrauded party is ordinarily limited to recovering his "out-of-pocket" loss . . . ' [Citations.]" (<i>Ibid.</i>) "Misrepresentation, even maliciously committed, does not support a cause of action unless the plaintiff suffered consequential damages. [Citation.]" (<i>Beckwith v. Dahl</i> (2012) 205 Cal.App.4th 1039, 1064 [internal quotations omitted].) " 'If the existence—and not the amount—of damages alleged in a fraud pleading is "too remote, speculative or uncertain," then the pleading cannot state a claim for relief.' [Citation.]" (<i>Ibid.</i>) "[I]t is not enough for the complaint to allege damage was suffered. The fraud plaintiff must also allege his damages were caused by the actions he took in reliance on the defendant's misrepresentations." (<i>Ibid.</i>) As to pleading justifiable reliance, "the plaintiff must set forth facts to show that his or her actual reliance on the representations was justifiable, so that the cause of the damage was the defendant's wrong and not the plaintiff's fault.' [Citation.] There must be more pled than a simple statement plaintiff justifiably relied on the statements. [Citation.] The complaint must contain 'allegations of facts showing that the actual inducement of plaintiffs . . . was justifiable or reasonable. [Citations.]" [Citation.]" (<i>Id.</i> at pp. 1066-1067.) Here, the FAC alleges that Plaintiff attended training courses held by Trading Academy LLC, initially paying \$199; that on January 9, 2025, Plaintiff was pressured into paying an additional \$17,000 "through high-pressure tactics and false representations regarding services and refund rights"; that on January 17, a certificate was issued despite no services being delivered; that Kingsbury refused to refund the money, citing a "three-day no-refund" policy; that Plaintiff filed the instant action on April 4, 2025; and that the \$17,000 was repaid on May 1, 2025. (Complaint, Summary of Facts.) Plaintiff also alleges that while the \$17,000 was repaid, "Plaintiff had already suffered economic loss, emotional distress, and related damages," and "time lost, emotional distress, and financial hardship." (<i>Ibid.</i>) The FAC seeks
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		general and special damages along with punitive and exemplary damages and pre- and post-judgment interest and costs. (Complaint, Relief Sought.) All factual allegations are taken as true. All material facts properly pleaded, and reasonable inferences, must be accepted as true. (<i>Aubry v. Tri-City Hospital Dist.</i> (1992) 2 Cal. 4th 962, 966-67.) The existence of damages is uncertain. The allegation that Plaintiff was refunded the \$17,000 indicates that Plaintiff has suffered no damages. Notably, the only damages Plaintiff identifies in the opposition is the payment of \$17,000. Plaintiff's allegations that she suffered damages for "economic loss, emotional distress, and related damages," and "time lost, emotional distress, and financial hardship" is not pleaded with the requisite particularity. Nor does Plaintiff show that these types of damages are recoverable for a claim of fraud or negligent misrepresentation. Additionally, the FAC does not allege the precise misrepresentation that was made, nor does it allege facts showing how, when, where, and by what means. Further, the FAC does not allege the other elements of fraud, i.e., knowledge of falsity, and justifiable reliance with the requisite specificity. The allegation that Defendants knowingly or negligently misrepresented the nature of the program and refund rights is conclusory. The court may ignore allegations that are legal conclusions. (<i>Schep v. Capital One, N.A.</i> (2017) 12 Cal.App.5th 1331, 1336.) The court is to treat the demurrer as an admission by defendants of all material facts pled in the complaint, but not logical inferences, contentions, or conclusions of fact or law. (<i>Winn v. Pioneer Medical Group, Inc.</i> (2016) 63 Cal.4th 148, 152.) The second cause of action for negligent misrepresentation fails to state sufficient facts with particularity for the same reasons as the first cause of action. Also, the FAC does not allege facts showing misrepresentation of fact
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		by a person who has no reasonable grounds for believing it to be true. Further, the second cause of action relies on the same allegations as the first cause of action, and therefore is duplicative. A judge may properly sustain a demurrer without leave to amend as to a cause of action that contains allegations of other causes of action and, therefore, does not add anything to the complaint by way of fact, theory, or recovery. (<i>Palm Springs Villas II Homeowners Ass'n, Inc. v Parth</i> (2016) 248 Cal.App.4th 268, 290 (cause of action for breach of governing documents was duplicative of cause of action for breach of fiduciary duty).) Plaintiff requests leave to amend, if any portion of the FAC requires clarification. Although Plaintiff has not articulated how she can cure any of the defects, including the one as to damages, nor is a potentially effective amendment apparent, the Court SUSTAINS, with 20 days leave to amend, the demurrer to the first and second causes of action. <i>Third Cause of Action</i> Kingsbury contends that the third cause of action for common count – money had and received fails to state facts sufficient to constitute a cause of action because Plaintiff expressly alleges the \$17,000 was refunded on May 1, 2025, such that the second and third elements—that defendant has not given the money and refuses to give it—are contradicted by Plaintiff's own allegations. Plaintiff does not dispute these arguments, and therefore concedes the same. It is axiomatic the failure to challenge a contention in a brief results in the concession of that argument. (<i>DuPont Merck Pharmaceutical Co. v. Sup. Ct.</i> (2000) 78 Cal.App.4th 562, 566 ["By failing to argue the contrary, plaintiffs concede this issue"]; <i>Westside Center Associates v. Safeway Stores 23, Inc.</i> (1996) 42 Cal.App.4th 507, 529 ["failure to address the threshold question ... effectively concedes that issue and renders its remaining arguments moot"]; <i>Glendale Redevelopment Agency v. Parks</i> (1993) 18
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		Cal.App.4th 1409, 1424 [issue is impliedly conceded by failing to address it].) A cause of action for money had and received is stated if it is alleged that the defendant 'is indebted to the plaintiff in a certain sum "for money had and received by the defendant for the use of the plaintiff." '[Citation.]' (<i>Farmers Ins. Exch. v. Zerin</i> (1997) 53 Cal.App.4th 445, 460.) The allegation that the \$17,000 was repaid is fatal to the third cause of action. The demurrer to the third cause of action is SUSTAINED, without leave to amend. <i>Fourth Cause of Action</i> Kingsbury contends that the fourth cause of action for unfair competition fails to state facts sufficient to constitute a cause of action and is uncertain. Kingsbury asserts that it is uncertain which prong of "unlawful, unfair, and fraudulent" is being alleged, and the FAC does not provide facts to support each prong. Plaintiff does not dispute these arguments, and therefore concedes the same. "The UCL [Business and Professions Code section 17200 et seq.] defines unfair competition as 'any unlawful, unfair or fraudulent business act or practice . . .'" [Citation.]" (<i>In re Tobacco Cases</i> (2009) 46 Cal.4th 298, 311.) Thus, there are three prongs under which a claim may be established under the UCL. (<i>Daro v. Superior Court</i> (2007) 151 Cal.App.4th 1079, 1093.) "An act can be alleged to violate any or all of the three prongs of the UCL—unlawful, unfair, or fraudulent." (<i>Berryman v. Merit Property Management, Inc.</i> (2007) 452 Cal.App.4th 1544, 1554.) "A plaintiff alleging unfair business practices under [Business and Professions Code Sections 17000, et seq.] must state with reasonable particularity the facts supporting the statutory elements of the violation. (<i>Khoury v. Maly's of California, Inc.</i> (1993) 14 Cal.App.4th 612, 619.) The FAC alleges in conclusory fashion that "Defendants knowingly or negligently misrepresented the nature of their program
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		and refund rights,” and that this conduct “was unlawful, unfair, and fraudulent,” (Complaint, Allegations.) Thus, Plaintiff asserts that Kingsbury’s conduct violated all three prongs. However, the FAC does not state with reasonably particularly the facts supporting the elements of the violation for any of the prongs. “An unlawful business practice or act is an act or practice, committed pursuant to a business activity, that is at the same time forbidden by law.” (<i>Klein v. Earth Elements, Inc.</i> (1997) 59 Cal. App. 4th 965, 969.) “Under its ‘unlawful’ prong, ‘the UCL borrows violations of other laws ... and makes those unlawful practices actionable under the UCL.’ [Citation.] Thus, a violation of another law is a predicate for stating a cause of action under the UCL’s unlawful prong.” (<i>Berryman v. Merit Property Management, Inc.</i> (2007) 152 Cal.App.4th 1544, 1554.) The FAC contains no allegations of what law has been violated. Significantly, the UCL’s remedies are limited. Business & Professions Code section 17203 states, in part: “Any person who engages, has engaged, or proposes to engage in unfair competition may be enjoined in any court of competent jurisdiction. The court may make such orders or judgments, including the appointment of a receiver, as may be necessary to prevent the use or employment by any person of any practice which constitutes unfair competition, as defined in this chapter, or as may be necessary to restore to any person in interest any money or property, real or personal, which may have been acquired by means of such unfair competition.” (Bus. & Prof. Code § 17203.) “A UCL action is equitable in nature; damages cannot be recovered.” (<i>Korea Supply Co. v. Lockheed Martin Corp.</i> (2003) 29 Cal.4th 1134, 1144.) Prevailing plaintiffs are generally limited to injunctive relief and restitution. (<i>Ibid.</i>) “Under the UCL, an individual may recover profits unfairly obtained to the extent that these profits represent monies given to the defendant or benefit in which the plaintiff has an ownership interest.” (<i>Id.</i> at p. 1148.)
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		The FAC seeks “[r]estitution/disgorgement under Bus. & Prof. Code § 17200.” (Complaint, Relief Sought.) However, as the FAC alleges that Plaintiff was repaid the \$17,000 she paid, such that she already obtained restitution, and no other allowable relief is sought, the demurrer to the fourth cause of action is SUSTAINED, without leave to amend. <i>Fifth Cause of Action</i> Kingsbury contends that the fifth cause of action for intentional infliction of emotional distress (“IIED”) fails to state facts sufficient to state a claim because high-pressure sales tactics and allegedly false representations in a commercial transaction do not rise to the level of outrageousness required for IIED; the FAC contains only conclusory allegations without facts demonstrating Defendants intended to cause emotional distress or acted with reckless disregard of that probability; and this cause of action is duplicative of the fraud claims as the emotional distress is merely incidental to the fraud. Plaintiff does not dispute these arguments, and therefore concedes the same. “A cause of action for intentional infliction of emotional distress exists when there is ‘(1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff’s suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant’s outrageous conduct.’ A defendant’s conduct is ‘outrageous’ when it is so ‘extreme as to exceed all bounds of that usually tolerated in a civilized community.’ And the defendant’s conduct must be ‘intended to inflict injury or engaged in with the realization that injury will result.’ ” (<i>Hughes v. Pair</i> (2009) 46 Cal.4th 1035, 1050–1051.) “Liability for intentional infliction of emotional distress does not extend to mere insults, indignities, threats, annoyance, petty oppressions, or other trivialities.” (<i>Bock v.</i>
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		<i>Hansen</i> (2014) 225 Cal.App.4th 215, 233 (internal quotations omitted).) "The complaint must plead specific facts that establish severe emotional distress resulting from defendant's conduct. [Citation.]" (<i>Michaelian v. State Comp. Ins. Fund</i> (1996) 50 Cal. App. 4th 1093, 1114.) Here, the FAC alleges that Plaintiff was pressured into paying an additional \$17,000 "under high-pressure sales tactics and false representations that the payment was necessary for training and certification," that "Defendants knowingly or negligently misrepresented the nature of the program and refund rights; and that such conduct caused "significant stress, anxiety, and physical symptoms corroborated by EMS and medical records from October 2, 2025." (Complaint, Summary of Facts and Allegations.) The allegations above do not amount to extreme and outrageous conduct, and there are no facts supporting that Kingsbury intended to cause, or acted with reckless disregard of the probability of causing emotional distress. Plaintiff does not address this cause of action and it is not apparent that these deficiencies can be rectified by amendment. The demurrer to the fifth cause of action is SUSTAINED, with 20 days' leave to amend. <i>Sixth Cause of Action</i> Kingsbury contends that the sixth cause of action for negligent infliction of emotional distress fails to state facts sufficient to constitute a cause of action as the FAC does not identify any duty owed by Defendants beyond those arising from the commercial transaction; that the economic loss doctrine bars negligence-based emotional distress claims arising from a commercial contract dispute; and that this claim duplicates the negligent misrepresentation claim and should be dismissed. Plaintiff does not dispute these arguments, and therefore concedes the same. There is no independent tort of negligent infliction of emotional distress. (<i>Lawson v.</i>
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		<i>Management Activities, Inc.</i> (1999) 69 Cal.App.4th 652, 656.) " 'The negligent causing of emotional distress is not an independent tort, but the tort of negligence [Citation.] The traditional elements of duty, breach of duty, causation, and damages apply . . . ' [Citations.]" (<i>Burgess v. Superior Court</i> (1992) 2 Cal.4th 1064, 1072 ("Burgess").) A "direct victim" case allows damages for negligently inflicted emotional distress absent physical injury or impact where a duty arising from a preexisting relationship is negligently breached. (<i>Id.</i> at p. 1074.) Initially, Kingsbury's contention that the economic loss doctrine bars this claim is conclusory and unsupported by citation to authority. The court may "disregard conclusory arguments that are not supported by pertinent legal authority or fail to disclose the reasoning by which [a party] reached the conclusion [he or she] wants [the court] to adopt.'" (<i>United Grand Corp. v. Malibu Hillbillies, LLC</i> (2019) 36 Cal.App.5th 142, 153 citing <i>City of Santa Maria v. Adam</i> (2012) 211 Cal.App.4th 266, 287.) Nor is this claim duplicative of the claim for negligent misrepresentation. However, the FAC does not allege a duty owed by Kingsbury to Plaintiff, and does not allege facts supporting the existence of a preexisting relationship. At best, the FAC alleges that Plaintiff paid Kingsbury for services, i.e., training and certification. Plaintiff does not address this cause of action and it is not apparent that these deficiencies can be rectified by amendment. The demurrer to the sixth cause of action is SUSTAINED, with 20 days' leave to amend. <i>Seventh Cause of Action</i> Kingsbury contends that the seventh cause of action for financial elder abuse fails to state facts sufficient to constitute a cause of action. Kingsbury asserts that Plaintiff has not met the heightened pleading standard for an elder abuse claim; that the FAC's conclusory allegations are insufficient; that the retention element fails as the \$17,000 was voluntarily returned; that financial elder abuse statutes do not apply to ordinary commercial transactions; and that the FAC provides no facts sufficient to recovery attorney's fees
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		under Welfare & Institutions Code section 15657.5. Plaintiff does not dispute these arguments, and therefore concedes the same. "[C]ivil actions may be brought under the Elder Abuse Act for 'physical abuse' (§§ 15610.63, 15657), 'neglect' (§§ 15610.57, 15657), or 'financial abuse' (§§ 15610.30, 15657.5)." (<i>Mahan v. Charles W. Chan Ins. Agency, Inc.</i> (2017) 14 Cal.App.5th 841, 858 ("Mahan").) Welfare and Institutions Code § 15610.30 states as follows: (a) "Financial abuse" of an elder or dependent adult occurs when a person or entity does any of the following: (1) Takes, secretes, appropriates, obtains, or retains real or personal property of an elder or dependent adult for a wrongful use or with intent to defraud, or both. (2) Assists in taking, secreting, appropriating, obtaining, or retaining real or personal property of an elder or dependent adult for a wrongful use or with intent to defraud, or both. (3) Takes, secretes, appropriates, obtains, or retains, or assists in taking, secreting, appropriating, obtaining, or retaining, real or personal property of an elder or dependent adult by undue influence, as defined in Section 15610.70. (b) A person or entity shall be deemed to have taken, secreted, appropriated, obtained, or retained property for a wrongful use if, among other things, the person or entity takes, secretes, appropriates, obtains, or retains the property and the person or entity knew or should have known that this conduct is likely to be harmful to the elder or dependent adult. (c) For purposes of this section, a person or entity takes, secretes, appropriates, obtains, or retains real or personal property when an elder or dependent adult is deprived of any property right, including by means of an agreement, donative transfer, or testamentary bequest, regardless of whether the property is held directly or by a representative of an elder or dependent adult.
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		(Welf. & Inst. Code § 15610.30(a)-(c).) “ ‘Undue influence’ means excessive persuasion that causes another person to act or refrain from acting by overcoming that person’s free will and results in inequity.” (Welf. & Inst. Code § 15610.70(a).) “Evidence of an inequitable result, without more, is not sufficient to prove undue influence.” (Welf. & Inst. Code § 15610.30(b).) “Evidence of the equity of the result may include, but is not limited to, the economic consequences to the victim, any divergence from the victim’s prior intent or course of conduct or dealing, the relationship of the value conveyed to the value of any services or consideration received, or the appropriateness of the change in light of the length and nature of the relationship. (Welf. & Inst. Code, § 15610.70(a)(4).) The FAC alleges that Plaintiff is a 65-year old senior, and that Defendants knowingly or negligently misrepresented the nature of the program and refund rights, exploiting Plaintiff’s age and caregiving circumstances.” (Complaint, Summary of Facts and Allegations.) It is alleged that Plaintiff paid \$17,000 “under high-pressure sales tactics and false representations that the payment was necessary for training and certification,” and that “a certificate was issued despite the absence of services.” (Complaint, Summary of Facts.) Initially, Kingsbury’s proposition that financial elder abuse statutes do not apply to ordinary commercial transactions is not supported by <i>Bounds v. Superior Court</i> (2014) 229 Cal.App.4th 468, 478-479. In fact, <i>Bound</i> states, “[t]he financial abuse provisions are, in part, premised on the Legislature’s belief that in addition to being subject to the general rules of contract, financial agreements entered into by elders should be subject to special scrutiny.” (<i>Bounds v. Superior Court</i> (2014) 229 Cal.App.4th 468, 478.) There is no distinction as to agreements for commercial transactions or business dealings.
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		In addition, contrary to Kingsbury's assertion, aggravated circumstances is not required to recover attorney's fees under Welfare & Institutions Code section 15657.5(a), as cited by Kingsbury. Instead, Welfare & Institutions Code section 15657.5(a) states, in relevant part: "Where it is proven by a preponderance of the evidence that a defendant is liable for financial abuse, as defined in Section 15610.30, in addition to compensatory damages and all other remedies otherwise provided by law, the court shall award to the plaintiff reasonable attorney's fees and costs." (Welf. & Inst. Code § 15657.5(a).) "The attorney fee provision in section 15657.5 is not discretionary in nature." (<i>Arace v. Medico Investments, LLC</i> (2020) 48 Cal.App.5th 977, 983.) "Under the plain language of the statute, an award of attorney fees is a mandatory form of relief regardless of whether the plaintiff is awarded any other form of relief." (<i>Ibid.</i>) However, the allegations are insufficient to show that Kingsbury took the \$17,000 from Plaintiff for a wrongful use or with intent to defraud. These allegations are also insufficient to show that Kingsbury took such funds "by undue influence, as defined in Section 15610.70," or that Kingsbury knew or should have known that taking the funds was likely to be harmful to Plaintiff. Plaintiff does not address this cause of action and it is not apparent that these deficiencies can be rectified by amendment. The demurrer to the seventh cause of action is SUSTAINED, with 20 days' leave to amend. <u>Motion to Strike Portions of FAC</u> Defendant, Michael Kingsbury, moves for an order striking portions of Plaintiff's First Amended Complaint, including (1) all references to and the entire seventh cause of action for financial elder abuse, (2) all claims for punitive and exemplary damages contained in the Prayer for Relief and throughout the Complaint, (3) all claims for statutory damages and attorney's fees under Welfare & Institutions Code section 15657.5, (4) the fifth and sixth causes of action for intentional and negligent infliction of
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		emotional distress, and (5) any other irrelevant, false, or improper matter. In light of the Court's ruling on the demurrer, the motion to strike is MOOT. <i>Service on Plaintiff</i> Lastly, the Court notes that Kingsbury served Plaintiff, who self-represented, with the moving and reply papers by electronic service. Though no prejudice appears here, this is not proper. California Rules of Court, rule 2.253(b)(2) provides that "[s]elf-represented parties or other self-represented persons are exempt from any mandatory electronic filing and service requirements adopted by courts under this rule and Code of Civil Procedure section 1010.6." Additionally, "[i]n civil cases involving both represented and self-represented parties or other persons, represented parties or other persons may be required to file and serve documents electronically; however, in these cases, each self-represented party or other person is to file, serve, and be served with documents by non-electronic means unless the self-represented party or other person affirmatively agrees otherwise." (California Rules of Court, rule 2.253(b)(3).) There is no indication that Plaintiff has affirmatively agreed to electronic service. All parties are to comply with California Rules of Court, rule 2.253. The Case Management Conference is continued to August 27, 2026 at 1:30 p.m. <i>Kingsbury to give notice.</i>
111	Ariaga vs. City of Brea, 24-01403550	<i>Off-calendar.</i>
112		<i>Off-calendar.</i>